

Before the first signature

What must be closed before a school actually signs a pilot — so nothing in the deployment pack is contradicted in due diligence.

Owner: Calum Johnson · Last updated 2026-05-24 · Review before sending Document 01/02 to any school for signature

Blocking — close before ANY school signs

BLOCKING

☐ 1. Anthropic AI DPA + written no-training / zero-retention confirmation

The deployment pack (Docs 02, 03, 06, 07) states "no training on submissions" as our *contractual position being finalised*. Get the counter-signed Anthropic commercial DPA and a written ZDR / no-training confirmation in hand. Until then, do not upgrade the wording to "confirmed".

Ref: `src/config/subprocessors.ts` (Anthropic `dpaStatus 'unconfirmed'`) · Doc 03 "AI sub-processor"

Calum + counsel · Anthropic

☐ 2. UK solicitor review of the Pilot Agreement (01) + DPA (02) templates

These are drafted templates, not lawyer-settled contracts. Get a UK solicitor to review both once — especially the liability cap, termination, and the controller/processor clauses — before a school's counsel marks them up. One review covers all future pilots.

Ref: Doc 01, Doc 02

Calum + UK solicitor

☐ 3. Confirm the transactional email provider + get its DPA

The register lists the email provider as "Resend / Postmark — unconfirmed" because neither package is in `package.json`. Confirm which is actually live, then secure its DPA and fix Doc 03 + the public sub-processor list.

Ref: `src/config/subprocessors.ts` (email provider `'unconfirmed'`) · Doc 03

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☐ 4. Counter-sign the core infrastructure DPAs

Supabase, Microsoft Azure, Vercel, Cloudflare, Stripe, Sentry are all "pending counter-signature". Execute the clickwrap/standard DPAs and keep copies on file so you can hand them to a DPO on request. These touch student data, so they're in scope before a school signs.

Ref: `src/config/subprocessors.ts` (`dpaStatus 'pending'`) · Doc 03

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☐ 5. Reconcile the retention periods (live inconsistency)

The public Qatar privacy page §7 says account data is kept "**Account duration + 3 years**"; the RoPA and Doc 05 say "**active + 24 months**". Pick one, fix the other. A DPO who reads both will flag the contradiction.

Ref: /legal/privacy-qatar §7 vs RoPA v1 vs Doc 05

Calum + DPO hat

☐ 6. DSL operational readiness for the 24-hour SLA

Docs 06 + 08 commit Lauren Johnson to a 24-hour safeguarding-acknowledgement SLA. Confirm she is genuinely monitoring `safeguarding@theenglishhub.app` + the phone, and that the in-product safeguarding-disclosure routing actually fires to her. Don't promise an SLA you can't staff.

Ref: Doc 06, Doc 08

Calum + Lauren

☐ 7. DPO / DSL mailbox "send-as" configured

Cloudflare routing receives mail at `dpo@` / `safeguarding@` but replies still leave as `info@upskillenergy.com`. Finish the Google Workspace send-as so DPO/DSL correspondence (incl. with a school's counsel) comes from the right address. ~15 min.

Ref: business-docs/compliance/qatar-pdppl/03-pdms/dpo-mailbox-send-as-runbook.md

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Blocking for a Qatar school specifically QATAR

☐ 8. Decide the Article 16 permit timing

The permit dossier is shelf-ready but not submitted (founder decision: hold until a Qatar school commits, to time the legal-opinion spend). When a Qatar school is about to sign, decide: submit the permit + commission the Qatari legal opinion now, or proceed on the documented "substantive posture in place" basis. A government / Qatar-Foundation school is more likely to require the permit reference than a private British school.

Ref: business-docs/compliance/qatar-pdppl/01-article-16-permit/ · Doc 06

Calum + Qatari counsel

☐ 9. Qatari legal opinion (only if the school requires it)

USD 8k–25k, deferred by founder decision. Trigger: the first Qatar school that makes it a contractual condition. If triggered, commission it as a condition of contract closure and attach to the Article 16 dossier as Exhibit G.

Ref: PDMS index §4

Calum + Qatari counsel

Recommended – strengthens the position, not strictly blocking

RECOMMENDED

☐ **10. Confirm cyber insurance + have the certificate ready**

Doc 07 §E says cyber insurance is "available to confirm on request". Make sure a policy is actually in place and the certificate is to hand — procurement teams often ask for it.

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☐ **11. Registered-office disclosure ready**

Docs 01/07 say the registered office is "available on request, not published". Have the exact wording ready to give procurement so it's not a scramble mid-deal.

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☐ **12. Confirm PostHog live/retired + fix the register**

PostHog is flagged "unconfirmed — being confirmed live". Confirm whether it's actually running; if retired, set it inactive and remove from the public list. Minor, but a sharp DPO will ask.

Ref: src/config/subprocessors.ts (PostHog) · Doc 03

Calum / dev

☐ **13. Secure roster-upload link ready**

Doc 12 tells schools not to email a student roster and promises "a secure upload link". Make sure that link/mechanism actually exists before the first kickoff, or upload together on the kickoff screen-share.

Calum / dev

Internal working document — do not send to schools.

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